

GENERAL TERMS AND CONDITIONS *For Architect Engineer Subcontracts*

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1. DEFINITIONS

As used in the Subcontract, the term:

- a. “Buyer” means the Board of Trustees of the Leland Stanford Jr. University (“University”), or any duly authorized representative thereof, acting through SLAC National Accelerator Laboratory (“SLAC”) under its Management and Operating Contract with the United States Department of Energy (“DOE”).
- b. “Government” means the Government of the United States of America.
- c. “Micro-Purchase Threshold” shall mean the threshold defined in FAR 2.101, as updated from time to time.
- d. “Procurement Specialist” means Buyer’s designated contracting officer with the authority to bind Buyer. Unless otherwise provided in writing herein, no other Buyer personnel or agents possess such authority. Procurement Specialist may also be referred to as “Subcontract Administrator” in the Subcontract.
- e. “Seller” means the firm (individual person and/or entity) supplying the materials, supplies or services called for under the Subcontract. Seller may also be referred to as supplier, Subcontractor or vendor.
- f. “Seller Representative” means Seller’s primary point of contact for Buyer, designated by Seller as responsible for leading and organizing the services to be provided herein.
- g. “Simplified Acquisition Threshold” shall mean the threshold defined in FAR 2.101, as updated from time to time.

2. SCOPE; ENTIRE AGREEMENT AND ORDER OF PRECEDENCE

- a. The scope of the Subcontract shall be limited to the acquisition of architect engineering professional services.
- b. The Subcontract may consist of any or all of the following documents: (1) signed Subcontract or Purchase Order, including any special terms and conditions attached thereto; (2) these terms and conditions and any on-site supplemental terms and conditions (for services provided at Buyer’s site); (3) Statement of Work; (4) any other Buyer referenced and incorporated clauses, provisions, and documents; (5) Buyer-furnished Government Property; and (6) Seller’s written and accepted proposal. These documents comprise the entire agreement between the parties and supersede all prior proposals, representations, negotiations, or agreements, whether written or oral.
- c. Nothing in the Subcontract or referenced standards shall be construed to establish a contractual relationship between the Buyer or DOE and any sub-subcontractor, or to relieve the Seller of full responsibility for compliance with all requirements of the Subcontract.
- d. Any conflicts and/or inconsistencies in the Subcontract shall be resolved by giving precedence in the order they are listed above, with the first document having the highest precedence, and each following document having successively lower precedence.
- e. Except as otherwise provided in this Subcontract, the term “Sub-Subcontract” includes lower-tier subcontracts and purchase orders under this Subcontract, and the terms “subcontractor” or “sub-subcontractor” shall mean Seller’s subcontractor.

3. SELLER ACCEPTANCE OF THIS SUBCONTRACT

- a. Seller's acknowledgement, commencement of performance, or acceptance of payment, whichever occurs soonest, shall constitute Seller's unqualified acceptance of the Subcontract.
- b. Seller, by accepting the Subcontract, does hereby agree that (i) this Subcontract sets forth the entire agreement between the Buyer and the Seller and supersedes any prior offers, negotiations, and agreements concerning the subject matter of this Subcontract, and (ii) no form, document, or additional or differing terms supplied by the Seller shall constitute a part of the Subcontract or have any effect, regardless of where they are included, unless specifically and expressly accepted in writing by the Procurement Specialist.

4. SERVICES

- a. The Seller shall be responsible for the professional quality, technical accuracy and the coordination of all designs, drawings, specifications, and of the services furnished by the Seller under this Subcontract. The Seller shall, without additional compensation, correct or revise any errors or deficiencies in its designs, drawings, specifications and services.
- b. The extent and character of the services to be provided by Seller shall be subject to the general oversight, supervision, direction, control, and approval of Buyer. Neither the Buyer's reviews, approval or acceptance of, nor payment for, the services under this Subcontract shall be construed to operate as a waiver of any rights under this Subcontract, or of any cause of action arising out of the performance of this Subcontract, and the Seller shall be and remain liable to the Buyer, in accordance with applicable law, for all damages to the Buyer caused by the Seller's negligence or misconduct.
- c. The Seller shall manage its services, consult with the Buyer, research applicable design criteria, attend project meetings, communicate with members of the project team and report progress to the Buyer. The Seller will make available the services of certain of its employees, as contractually required, for the purpose of personally rendering expert advice and assistance to the Buyer in connection with the performance of this Subcontract.
- d. The Buyer may provide such working space, equipment, furniture, fixtures, services and utilities as may be required for the performance of said services by the Seller and its designated employees while at SLAC.
- e. As part of field verification services, the Seller shall be required to visit the applicable site and become familiar with local conditions under which the construction is to be performed. This shall include taking field measurements of any and all existing conditions relating to the planned construction and the observation and recording of any conditions at the site affecting the proposed construction. The Seller shall promptly communicate information regarding any such conditions, in writing, to the Buyer. The Seller shall be liable to the Buyer for damages resulting from errors, inconsistencies or omissions arising from the Seller's field verification services, or from its failure to perform the field verification services set forth in this section.
- f. All lower-tier subcontractors utilized by the Seller shall be licensed in their trade in accordance with state regulations and/or trade association requirements.
- g. Seller shall disclose whether it or its sub-subcontractors intend to bid or perform any construction connected with the architect-engineer services provided hereunder. Seller shall obligate its sub-subcontractors through multiple tiers to comply or ensure compliance with the foregoing. This requirement shall survive the termination of this contract.
- h. If the Seller is required to provide services during the construction phase of the project, the Seller shall, without limitation and in addition to any other services, review submittals and requests for information and visit the site, within five (5) business days of Buyer's request.

5. KEY PERSONNEL

- a. Seller Representative shall: (A) devote a reasonable amount of time to the services to be provided herein; (B) be closely involved and continuously responsible for the conduct of the services; (C) not be replaced unless pre-approved in writing by Buyer; and (D) promptly advise Buyer if she/he will devote substantially less effort to the services hereunder than anticipated or otherwise set forth in the Subcontract.
- b. Any of Seller's key technical personnel identified in the Subcontract and assigned to perform the services hereunder shall not be assigned to other work that will interfere with the services they are to provide under this Subcontract, without prior, written approval from Buyer, except in circumstances beyond the reasonable control of Seller. If such circumstances arise, Seller shall inform the Procurement Specialist of such reassignments within five (5) business days of the occurrence of such circumstance(s). A replacement individual shall be assigned by the Seller, subject to prior approval by the Procurement Specialist, within ten (10) business days. If an acceptable individual is not identified, Buyer may terminate this Subcontract immediately.

6. INSPECTION AND ACCEPTANCE OF DELIVERABLES OR SERVICES

- a. The Buyer reserves the right to inspect all and every part of the deliverables and services under the Subcontract, during and after completion of performance. The Buyer shall not be obligated to inspect the deliverables or services, and neither the inspection nor the lack of inspection by the Buyer shall relieve the Seller of its responsibility for providing the deliverables and services in accordance with the Subcontract. The inspection or use of or payment for a deliverable or service under the Subcontract, either wholly or in part, shall not be construed as acceptance.
- b. If any deliverable, service or any part thereof is not in accordance with the Subcontract, the Buyer may notify the Seller that the deliverable or service is rejected. Thereupon, the Seller shall, at its own expense, take the necessary corrective action, which shall include, at minimum, expeditiously replacing such deliverable, providing necessary services, or providing a full refund.

- c. Such notice of rejection shall be provided within forty-five (45) days of the receipt of the items or completion of services, or such other longer period of time as may be prescribed by Buyer. If no such notice of rejection is provided within the aforementioned time, or if the Procurement Specialist formally accepts the deliverables or services in writing, such deliverables or services shall be deemed accepted, provided, however, this period may be extended to thirty (30) days after the date of discovery of a material defect (if such date is later) if the Buyer could not have reasonably discovered such a material defect from a reasonable inspection.

7. TRAVEL

Only when travel is included as part of the performance under the Subcontract and is set forth as a specific cost/price element in the Subcontract, the following requirements shall apply:

- a. Expenses incurred for travel, lodging, meals, and incidental expenses shall be reimbursed only to the extent that they comply with SLAC's travel reimbursement guidelines. The Seller shall submit with its invoice itemized receipts showing proof of payment for expenses in excess of \$75. If travel is not reimbursed on a cost-basis, then the requirements of this paragraph do not apply.
- b. To the extent any foreign travel (outside the U.S.) is required under this Subcontract, it shall be conducted pursuant to the requirements contained in DOE Order 550.1 Chg 1 (LtdChg), "Official Foreign Travel" or any subsequent version of the Order in effect at the time of award. All foreign travel requests must be entered into the DOE Foreign Travel Management System (FTMS) within 60 calendar days before the proposed departure date. Travelers must contact the Procurement Specialist for the necessary foreign travel forms and processes well in advance of the FTMS deadline. All foreign travel request forms are to be submitted to the Travel Office for entry into FTMS.
- c. No foreign travel shall be taken until a DOE FTMS Foreign Travel Approval Number has been obtained from the SLAC Travel Office and transmitted to the Seller. Reimbursement for foreign travel incurred without a FTMS Approval Number will not be allowed. More information can be found at the SLAC travel Office's website, at <https://travel.slac.stanford.edu/>.

8. INVOICES AND PAYMENTS

- a. Seller must submit certified invoices or vouchers setting forth the time spent in the performance of the work in order to receive payment. Payments shall be made by check or automated clearing house (ACH) as agreed.
- b. The Buyer will make progress payments monthly as the work proceeds, or at such intervals as determined by the Buyer on estimates or milestones approved by the Buyer. Unless otherwise specified, partial payments will not be made. If requested by the Buyer, the Seller shall furnish a breakdown of the total Subcontract price, showing the amount included therein for each principal category of the work, in such detail as requested, to provide a basis for determining progress payments. Payment shall be made within thirty (30) days after receipt of such invoice or voucher and shall be subject to correction for errors or other proper adjustments, deductions, or discounts, if any, until final payment and settlement occurs under this Agreement. The estimates shall be prepared by the Seller and accompanied by any supporting documentation and justification as the Procurement Specialist may prescribe or require.
- c. When travel reimbursement has been authorized in conformance with SLAC policies and procedures, submission of properly certified travel claims pursuant to this article, in accordance with the current contract travel regulations.
- d. Upon completion and acceptance of all work, the amount due the Seller under this Subcontract shall be paid upon the presentation of a properly executed invoice and after the Seller shall have furnished the Buyer with a release of all claims against the Buyer and the Government, arising by virtue of this Subcontract, other than claims in stated amounts as may specifically be excepted by the Seller from the operation of the release.
- e. At minimum, all invoices shall contain the information required by Buyer, available at <https://suppliers.slac.stanford.edu/doing-business-slac/invoicing-and-reimbursement>, incorporated herein by reference. All invoices shall reference applicable Purchase Orders by Buyer Purchase Order number, and the applicable line item numbers or other item number specified on the Purchase Order or Subcontract.
- f. For Sellers providing services in California and if Seller is not a California resident or entity, or does not have an office in California, the invoice must specify the number of hours and amount being invoiced for services performed in California.
- g. All invoices shall be submitted to ap@slac.stanford.edu or to the following address:

SLAC National Accelerator Laboratory
c/o Accounts Payable, MS 09 OR c/o Accounts Payable DISCOUNT DESK, MS 09 (for invoices with discount terms)
2575 Sand Hill Road
Menlo Park, California 94025

9. TAX AND BUYER EXEMPTION

- a. Except as may be otherwise provided in the Subcontract, the selling price includes all applicable federal taxes in effect on the date of this Subcontract, but does not include any state or local sales, use, or other tax directly applicable to the completed deliverables or services covered by the Subcontract, nor any other tax, duties, tariffs, and similar fees from which the Seller or this transaction is exempt. Upon request of the Seller, the Buyer shall furnish, unless no legal basis exists therefore, a tax exemption certificate or similar evidence of exemption with respect to any such tax not included in the Seller's price pursuant to this article.
- b. For Sellers providing services, the Buyer will automatically withhold from any invoice paid appropriate taxes, if required by the U.S. Internal Revenue Service and the California Franchise Tax Board.
- c. The Seller agrees to notify Buyer of any government tax, fee, or charge levied or purported to be levied on or collected from the Subcontractor in connection with this Subcontract which Seller has reason to believe may be inapplicable or invalid, and which would be reimbursable or the Buyer has claimed an exemption hereunder. The Subcontractor also agrees to refrain from paying any such tax, fee, or charge, unless otherwise authorized by the Buyer, and to take such steps as may be required by the Buyer to cause such tax, fee, or charge to be paid under protest and, if so directed by the Buyer, to cause to be assigned to the Buyer or its designee any and all rights to the abatement

or refund of any such tax, fee, or charge, and to permit the Buyer or its designee to join with the Seller in any proceedings for the recovery thereof or to sue for recovery in the Seller's name.

10. CODES AND STANDARDS

All federal and state laws, codes, standards, and referenced specifications indicated in the Statement of Work shall mean latest version or edition, including supplements when such exists, unless otherwise stated. Where differences exist among laws, codes, standards, and referenced specifications, the greatest protection shall govern.

11. INSURANCE

- a. Seller shall secure and maintain in effect at all times during the performance of the work under this Subcontract the coverages of insurance, set forth below, which shall be maintained with companies, underwriters or underwriting firms under forms of policies satisfactory to Buyer. Seller shall furnish to the Buyer concurrently with the execution of this Subcontract and prior to commencing any performance thereof, an electronic copy of a Certificate of Insurance substantiating the coverage and endorsements described below. The type and level of required insurance are as follows:
 - i. Professional Errors and Omissions Insurance in the amount not less than \$1,000,000 per claim.
- b. Seller shall provide the following endorsements to its Professional Errors and Omissions Insurance policy and/or ensure that the insurance policy is amended, if needed, to include the following:
 - i. An endorsement naming Buyer, DOE and the Seller's sub-subcontractors of any tier as additional insureds under the Professional Errors and Omissions Insurance policies, with respect to liability arising out of or in any way connected with performance of the Subcontract and stating that said policies are primary as to any loss to which the insurance coverage provided thereby is applicable without right of contribution from any insurance otherwise maintained by Buyer or DOE.
 - ii. A cross liability or severability of interest clause.
 - iii. A clause waiving subrogation.
- c. A written notice shall be given to the Procurement Specialist at least thirty (30) days prior to cancellation or material change in the form of any policy provided hereunder.
- d. Seller, by its signature to this Subcontract, warrants that all of the insurance required by this Subcontract is currently in effect and will be maintained throughout the period of this Subcontract, except that the minimum coverage specified above must not be encumbered by other claims during the period of performance by more than ten percent (10%) of the coverage specified.
- e. The foregoing requirements shall apply to all sub-subcontractors of any tier utilized by Seller under this Subcontract, and Seller shall ensure that such sub-subcontractors comply with the requirement. Before permitting any sub-subcontractors to perform any work under this Subcontract, Seller shall require that such sub-subcontractor furnish Seller with satisfactory evidence that it has taken out and maintains appropriate insurance equivalent to the above.

12. WARRANTY

The Seller at minimum warrants that it shall provide the services and deliverables hereunder in accordance with the professional standard of care ordinarily exercised by architect engineers providing similar services, applicable statutory provisions regulating such services, and in conformance with all of the requirements of the Subcontract. The warranty shall begin upon acceptance and extend for a period of one (1) year. Any services or deliverables not in conformance with the foregoing warranty shall be promptly repaired or replaced at no cost to the Buyer.

13. INDEMNITY

The Seller shall indemnify, defend, and hold harmless the Buyer, the Board of Trustees of the Leland Stanford Junior University, the Government of the United States, and their respective trustees, contractors, officers, agents, and employees from and against all claims of noncompliance with or violation of applicable laws or regulations, any and all claims of or loss of property damage or expense, personal injury, death, or other liability arising out of or related to the performance of the work hereunder by Seller or Seller's agents, provided that such loss is not caused by the gross negligence or willful misconduct of the Buyer. The Seller shall also pay any cost and/or attorneys' fees that may be incurred by any of the above-name indemnities in enforcing this indemnity.

14. CONFIDENTIALITY

- a. Except to the extent required by governing law or necessary to report fraud, waste, or abuse to the Government, the Seller, its employees, contractors, and agents shall not reproduce or disclose any information, knowledge, or data of the Buyer that the Seller receives or has access to in connection with this Subcontract when such information, knowledge, or data is marked confidential, proprietary, trade secret, official use only, or otherwise so expressly designated by the Buyer, the Government, or third-party contractors.
- b. The Seller shall have appropriate agreements or policies with its employees, agents, and lower-tier subcontractors to ensure compliance with this clause.

15. MATERIAL BREACH

In the event that Seller breaches any of its material obligations under this Subcontract, Buyer may provide written notice to Seller specifying the nature of the default, requiring it to cure such breach, and stating its intention to terminate this Agreement if such breach is not cured within thirty (30) days. If such breach is not cured within thirty (30) days after the receipt of such notice and such breach remains uncured, Buyer, in its sole discretion, shall be entitled to terminate the Subcontract, or portions thereof, for cause immediately by written notice to Seller. If Buyer terminates the Subcontract in accordance with the foregoing, Seller shall be responsible for all costs and expenses that Buyer incurs to cure the applicable breach(es) and to complete or replace any unfinished services or deliverables, irrespective of whether Buyer conducts such work itself

or through another third party. Nothing in this provision is intended to prevent Buyer from seeking immediate equitable or injunctive relief, or to avail itself of any of the other remedies available to it under this Subcontract or at law.

16. ASSIGNMENT

Neither the Subcontract nor any interest therein nor claim thereunder shall be assigned or transferred by the Seller, except as expressly authorized in writing by the Procurement Specialist, provided that the Seller or its assignee's rights to be paid amounts due as a result of performance of the Subcontract may be assigned to a bank, trust company or other financing institution, including any federal lending institution. Payments to an assignee shall be subject to setoff or recoupment for any present or future claims of Buyer against Seller.

17. INDEPENDENT CONTRACTOR

Seller is an independent contractor in all its operations and activities hereunder. The employees used by Seller to perform work under the Subcontract shall be Seller's employees exclusively, without any relation whatsoever to Buyer or its affiliates.

18. PERMITS, LICENSES, AND APPLICABLE LAWS

In performance of the Subcontract, Seller shall, at its own expense, comply with all applicable local, state, and federal laws, orders, rules, regulations, and ordinances. The Seller must, at its own expense, have and maintain the license(s) and/or certification(s) appropriate to its trade, issued by the relevant trade association, or regulatory or administrative agency.

19. DISPUTES AND GOVERNING LAW

- a. Informal Resolution. Seller shall timely inform the Procurement Specialist of any claim, controversy, or dispute arising out of or connected with this Subcontract. The parties shall attempt to resolve any dispute, controversy, or claim arising out of or related to this Subcontract in good faith, by direct, informal negotiations. Pending resolution of the dispute, claim, or controversy, the Seller shall proceed diligently with the performance of this Subcontract, in accordance with its terms and conditions. If the dispute cannot be settled through negotiation, the parties agree first to try in good faith to settle the dispute by mediation administered by a third-party mediator selected using and applying the American Arbitration Association's Construction Industry Mediation Procedures (effective July 1, 2015). This procedure can be invoked at any time, but must be initiated no later than 120 days after the Procurement Specialist receives written notice of a dispute. Each party shall bear its own expenses and the parties shall share the cost of third party mediator equally. If requested by both parties, the neutral third party may offer a nonbinding opinion as to a possible settlement. All discussions with the neutral third party mediator shall be confidential.
- b. Formal Resolution. If a dispute, controversy, or claim is not resolved under the procedures above, or if under exceptional circumstances, both parties agree to waive the mediation requirement, the dispute will be submitted for binding arbitration by and in accordance with the Construction Industry Arbitration Rules, effective July 1, 2015, of the American Arbitration Association (AAA). Absent agreement to the contrary, the arbitration shall be held in California. A maximum amount of liability for each party from an unfavorable result shall be agreed in mediation or otherwise prior to entering arbitration. Each party shall bear its own expense and the parties shall share the cost of arbitration equally, absent a finding that the losing party's position was unreasonable or frivolous such that it must reimburse costs and fees of the prevailing party in addition to any award amount. Judgment on the award shall be rendered by the arbitrator(s) may be entered in any court having jurisdiction thereof, and such judgment shall be final and binding. Nothing in this article shall grant the Seller by implication any statutory rights or remedies not expressly set forth in this Subcontract, or rights or remedies that exceed those rights and remedies that could be afforded by a court with jurisdiction.
- c. Governing Law and Venue. Any substantive issue of law shall be determined in accordance with the body of applicable federal law. If there is no applicable federal law, the law of the State of California shall apply.

20. EXPORT CONTROL

- a. Seller agrees that it shall not provide, deliver, or display any information, materials, or products subject to United States export controls, including those subject to the Export Administration Regulations ("EAR") administered by the Commerce Department or the International Traffic in Arms Regulation ("ITAR") administered by the State Department unless it provides written notice of the same at least 20 business days prior to the delivery or display to the Procurement Specialist.
- b. If any information, materials, or products delivered are subject to such controls, Seller shall provide applicable export control classification numbers or other information requested by the Buyer to comply with applicable export laws and regulations.

21. TIME IS OF THE ESSENCE

The Seller shall prosecute the work diligently with such forces as the Seller determines are necessary to complete the work of this Subcontract within the times specified in the Subcontract or the Subcontract term, whichever is soonest.

22. EXCUSABLE DELAYS

The Seller shall be liable for delays, unless such delays are caused by an occurrence beyond the reasonable control of the Seller and without its fault or negligence, such as acts of God or the public enemy, acts of the Government in either its sovereign or contractual capacity, fires, flood, pandemic, epidemics, quarantine, restrictions, strikes, unusually severe weather, and delays of common carriers. The Seller shall notify the Buyer in writing as soon as reasonably possible after commencement of any excusable delay, setting forth the full particulars in connection therewith, shall remedy such occurrence with all reasonable dispatch, and shall promptly give the Buyer written notice of the cessation of such occurrence.

23. PUBLICITY

Seller shall not release any advertising copy or other publicly available information mentioning Buyer or quoting the opinion of any of Buyer's employees. Seller shall not state or imply in advertising or other copy that Buyer, the Government, or their employees endorse in any way Seller's products or services. The Seller and its employees, agents, or contracts shall not use or exploit "Stanford University," "SLAC," or any other

trademark or logo owned by the Buyer or the Government, unless necessary to perform the Subcontract and if prior, written approval of Buyer of such use is received by Seller.

24. CLAUSES INCORPORATED BY REFERENCE

The Federal Acquisition Regulation (“FAR”) and Department of Energy Acquisition Regulation (“DEAR”) clauses listed below, which are located in Chapters 1 and 9, respectively, of Title 48 of the Code of Federal Regulations, are incorporated by this reference as a part of the Subcontract as prescribed below or as prescribed by the clauses’ prescriptives. If a condition listed next to the listed clause is inapplicable, then the clause is not incorporated by reference. As used in the clauses, the term “contract” shall mean the Subcontract; the term “Contractor” shall mean the entity (“Seller” or “Subcontractor”) who entered into the Subcontract with the Buyer; the term “subcontractor” shall mean the Seller’s subcontractor; and the terms “Government” and “Contracting Officer” shall mean the Buyer, except in FAR clauses 52.227-1, 52.227-3, 52.227-14, and 52.227-19, 52.204-10 in which clauses “Government” shall mean the Government and “Contracting Officer” shall mean the DOE Contracting Officer for Prime Contract DE-AC02-76SF00515 with the Buyer. The Seller shall include the listed clauses in its subcontracts at any tier, to the extent applicable.

THE FOLLOWING CLAUSES APPLY TO ALL SUBCONTRACTS:

FAR 52.203-19	PROHIBITION ON REQUIRING CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS (JAN 2017)
FAR 52.204-21	BASIC SAFEGUARDING OF COVERED CONTRACTOR INFORMATION SYSTEMS (NOV 2021)
FAR 52.204-23	PROHIBITION ON CONTRACTING FOR HARDWARE, SOFTWARE, AND SERVICES DEVELOPED OR PROVIDED BY KASPERSKY LAB AND OTHER COVERED ENTITIES (NOV 2021)
FAR 52.204-25	PROHIBITION ON CONTRACTING FOR CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OF EQUIPMENT (NOV 2021)
FAR 52.216-7	ALLOWABLE COSTS AND PAYMENT (AUG 2018), as modified by Alternate II of DEAR 952.216-7. If the Subcontract is with a state or local government, substitute “Subpart 31.7” for “Subpart 31.2” in paragraph (a)
FAR 52.222-21	PROHIBITION OF SEGREGATED FACILITIES (APR 2015), if the Subcontract includes the Equal Opportunity clause
FAR 52.222-26	EQUAL OPPORTUNITY (SEP 2016), unless the Subcontract is entirely exempt from the requirements of Executive Order 11246
FAR 52.222-50	COMBATING TRAFFICKING IN PERSONS (NOV 2021)
FAR 52.222-55	MINIMUM WAGES FOR CONTRACTOR WORKERS UNDER EXECUTIVE ORDER 14026 (JAN 2022), if Agreement is subject to the Service Contract Labor Standards statute or the Wage Rate Requirements (Construction) statute, and is to be performed in whole or in part in the United States
FAR 52.223-3	HAZARDOUS MATERIAL IDENTIFICATION AND MATERIAL SAFETY DATA (FEB 2021) ALT 1 (JULY 1995), if the Subcontract will require the delivery of hazardous materials as defined in FAR 23.301
FAR 52.223-11	OZONE-DEPLETING SUBSTANCES (JUN 2016), if the Subcontract involves delivery or use of such substances
FAR 52.223-12	REFRIGERATION EQUIPMENT AND AIR CONDITIONERS (JUN 2016), if the Subcontract involves the maintenance, service, repair, or disposal of such equipment
FAR 52.223-13	ACQUISITION OF EPEAT®-REGISTERED IMAGING EQUIPMENT (JUN 2014), if the Subcontract involves delivery or use of such equipment at Buyer’s or another federally controlled facility
FAR 52.223-14	ACQUISITION OF EPEAT®-REGISTERED TELEVISIONS (JUN 2014), if the Subcontract involves delivery or use of such equipment at Buyer’s or another federally controlled facility
FAR 52.223-15	ENERGY EFFICIENCY IN ENERGY-CONSUMING PRODUCTS (MAY 2020), if the Subcontract involves delivery or use energy-consuming products at Buyer’s or another federally controlled facility
FAR 52.223-16	ACQUISITION OF EPEAT®-REGISTERED PERSONAL COMPUTER PRODUCTS (OCT 2015) ALT I (JUN 2014), if the Subcontract involves delivery or use of such equipment at Buyer’s or another federally controlled facility
FAR 52.223-20	AEROSOLS (JUN 2016)
FAR 52.223-21	FOAMS (JUN 2016)
FAR 52.224-2	PRIVACY ACT (APR 1984) if the Subcontract involves the design, development, or operation of a system of records on individuals
FAR 52.224-3	PRIVACY TRAINING (JAN 2017), if Subcontractor employees will (1) have access to a system of records; (2) create, collect, use, process, store, maintain, disseminate, disclose, dispose, or otherwise handle personally identifiable information; or (3) design, develop, maintain, or operate a system of record
FAR 52.225-13	RESTRICTIONS ON CERTAIN FOREIGN PURCHASES (FEB 2021)
FAR 52.227-14	RIGHTS IN DATA-GENERAL (May 2014), with Alternates I (DEC 2007) and V (DEC 2007), and Alternate VIII of DEAR 952.227-14 applies if any data, including technical data or computer software, will be produced, furnished, acquired or delivered under this Agreement. The text for Alternate VIII may be found at this link . If delivery of Limited Rights Data is required, then Alternate II (DEC 2007) shall apply, with the following disclosure purposes added to the end of paragraph (a) of the Limited Rights Notice: 1. Use (except for manufacture) by support services contractors or subcontractors; 2. Evaluation by non-government evaluators; 3. Use (except for manufacture) by other contractors or subcontractors participating in the Government’s program of which the specific subcontract is a part; 4. Emergency repair or overhaul work; and 5. Release to a foreign government, or its instrumentalities, if required to serve the interests of the U.S. Government, for information or evaluation or for emergency repair or overhaul work. If delivery of Restricted Computer Software is required, then Alternate III (DEC 2007) shall apply.
FAR 52.227-17	RIGHTS IN DATA – SPECIAL WORKS (DEC 2007)
FAR 52.232-20	LIMITATION OF COST (APR 1984) if a fully funded cost-reimbursement contract is contemplated
FAR 52.232-22	LIMITATION OF FUNDS (APR 1984) if Subcontract is incrementally funded and cost-reimbursement

FAR 52.232-39	UNENFORCEABILITY OF UNAUTHORIZED OBLIGATIONS (JUN 2013)
FAR 52.232-40	PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS (MAR 2023)
FAR 52.236-25	REQUIREMENTS FOR REGISTRATION OF DESIGNERS (JUN 2003)
FAR 52.242-15	STOP-WORK ORDER (AUG 1989)
FAR 52.243-1	CHANGES - FIXED PRICE (AUG 1987) with ALT III (APR 1984)
FAR 52.244-6	SUBCONTRACTS FOR COMMERCIAL ITEMS (JUN 2023), if a subcontract for commercial items is awarded under this Subcontract
FAR 52.245-2	GOVERNMENT PROPERTY INSTALLATION OPERATION SERVICES (APR 2012) AS MODIFIED BY DEAR 952.245-2, when the Government will provide Government Property
FAR 52.249-6	TERMINATION (COST REIMBURSEMENT) (MAY 2004)
DEAR 952.203-70	WHISTLEBLOWER PROTECTION FOR CONTRACTOR EMPLOYEES (DEC 2000), if the work is performed on-site at a DOE-owned or leased facility
DEAR 952.227-82	RIGHTS TO PROPOSAL DATA (APR 1994), if the Subcontract is based upon a technical proposal
DEAR 970.5222-1	COLLECTIVE BARGAINING AGREEMENTS - MANAGEMENT AND OPERATING CONTRACTS (DEC 2000), if Agreement is for protective services or other services performed on-site which will affect the continuity of operation of the facility
DEAR 970.5223-4	WORKPLACE SUBSTANCE ABUSE PROGRAMS AT DOE SITES (DEC 2010), if subject to the provisions of 10 CFR part 707
DEAR 970.5232-3	ACCOUNTS, RECORDS, AND INSPECTION (DEC 2010 (Deviation)), applicable if costs incurred are a factor in determining the amount payable.
DEAR 970.5245-1	PROPERTY (JAN 2013) with Alternate 1 (DEC 2000), when the award is to a nonprofit Subcontractor

THE FOLLOWING CLAUSES APPLY IF THE SUBCONTRACT EXCEEDS \$2,500:

FAR 52.222-41	SERVICE CONTRACT ACT OF 1965, AS AMENDED (AUG 2018), if the Subcontract is principally for the furnishing of services in the United States through the use of "service employees" unless the Subcontract qualifies for class deviation under Section 4(b) of the McNamara-O'Hara Service Contract Act
FAR 52.222-55	MINIMUM WAGES FOR CONTRACTOR WORKERS UNDER EXECUTIVE ORDER 14026 (JAN 2022), if Agreement is subject to the Service Contract Labor Standards statute or the Wage Rate Requirements (Construction) statute, and is to be performed in whole or in part in the United States

THE FOLLOWING CLAUSE APPLIES IF THE SUBCONTRACT EXCEEDS \$3,500:

FAR 52.222-54	EMPLOYMENT ELIGIBILITY VERIFICATION (MAY 2022), unless the services or supplies provided are for the purchase of a Commercially Available Off-The-Shelf ("COTS") item, or is performed entirely outside the United States
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THE FOLLOWING CLAUSES APPLY IF THE SUBCONTRACT EXCEEDS THE MICROPURCHASE THRESHOLD:

FAR 52.223-18	ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING WHILE DRIVING (JUN 2020)
FAR 52.222-40	NOTIFICATION OF EMPLOYEE RIGHTS UNDER THE NATIONAL LABOR RELATIONS ACT (DEC 2010), if the Subcontract will be performed wholly or partially in the United States
FAR 52.225-1	BUY AMERICAN — SUPPLIES (OCT 2022)

THE FOLLOWING CLAUSE APPLIES IF THE SUBCONTRACT IS FOR \$15,000 OR MORE:

FAR 52.222-36	EQUAL OPPORTUNITY FOR WORKERS WITH DISABILITIES (JUN 2020), if applicable as set forth in FAR 22.1408(a)
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THE FOLLOWING CLAUSE APPLIES IF THE SUBCONTRACT IS FOR \$30,000 OR MORE:

FAR52.204-10	REPORTING EXECUTIVE COMPENSATION AND FIRST TIER SUBCONTRACT AWARDS (JUN 2020), solely incorporated to the extent Subcontractor exceeds the thresholds specified in paragraphs (d)(3) and (g)(2) of the clause, in which case, Subcontractor shall provide the required information to allow the Buyer to meet its obligations as a prime contractor unless such information is publicly available per (d)(3)(ii)
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THE FOLLOWING CLAUSE APPLIES IF THE SUBCONTRACT IS EXCEEDS \$35,000:

FAR 52.209-6	PROTECTING THE GOVERNMENT'S INTERESTS WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, OR PROPOSED FOR DEBARMENT (NOV 2021), if applicable as set forth in FAR 9.405-2(b)
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THE FOLLOWING CLAUSES APPLY IF THE SUBCONTRACT EXCEEDS \$150,000:

FAR 52.203-7	ANTI-KICKBACK PROCEDURES (JUN 2020), if applicable as set forth in FAR 3.502-2(i)
FAR 52.203-12	LIMITATION ON PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS (OCT 2010)
FAR 52.222-35	EQUAL OPPORTUNITY FOR VETERANS (JUN 2020), if applicable as set forth in FAR 22.1303(a)
FAR 52.222-37	EMPLOYMENT REPORTS ON VETERANS (JUN 2020), if applicable as set forth in FAR 22.1303(a)

THE FOLLOWING CLAUSES APPLY IF THE SUBCONTRACT EXCEEDS THE SIMPLIFIED ACQUISITION THRESHOLD:

FAR 52.203-5	COVENANT AGAINST CONTINGENT FEES (MAY 2014)
FAR 52.203-6	RESTRICTIONS ON SUBCONTRACTOR SALES TO THE GOVERNMENT (JUN 2020). For the acquisition of commercial items, use the clause with Alternate 1 (JUN 2020)
FAR 52.203-8	CANCELLATION, RESCISSION, AND RECOVERY OF FUNDS FOR ILLEGAL OR IMPROPER ACTIVITY (MAY 2014)
FAR 52.203-10	PRICE OR FEE ADJUSTMENT FOR ILLEGAL OR IMPROPER ACTIVITY (MAY 2014)
FAR 52.203.17	CONTRACTOR EMPLOYEE WHISTLEBLOWER RIGHTS AND REQUIREMENT TO INFORM EMPLOYEES OF WHISTLEBLOWER RIGHTS (JUN 2020)
FAR 52.215-2	AUDIT AND RECORDS – NEGOTIATION (OCT 20
FAR 52.219-8	UTILIZATION OF SMALL BUSINESS CONCERNS (OCT 2022), unless the contract, together with all of its subcontracts, will be performed entirely outside of the United States and its outlying areas
FAR 52.227-1	AUTHORIZATION AND CONSENT (JUN 2020)
FAR 52.242-13	BANKRUPTCY (JUL 1995)
DEAR 970.5223-7	SUSTAINABLE ACQUISITION PROGRAM (OCT 2010), ALT I FOR CONSTRUCTION CONTRACTS AND SUBCONTRACTS (OCT 2010) if Subcontract supports operation of the DOE facility and offers significant subcontracting opportunities for energy efficient or environmentally sustainable products or services

THE FOLLOWING CLAUSE APPLIES IF THE SUBCONTRACT EXCEEDS \$500,000:

DEAR 952.226-74	DISPLACED EMPLOYEE HIRING PREFERENCE (JUN 1997), unless the Subcontract is for “commercial items”
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THE FOLLOWING CLAUSE APPLIES IF THE SUBCONTRACT EXCEEDS \$750,000:

FAR 52.219-9	SMALL BUSINESS SUBCONTRACTING PLAN (OCT 2022), unless the Subcontractor is a small business or there are no subcontracting possibilities
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THE FOLLOWING CLAUSES APPLY IF THE SUBCONTRACT IS FOR \$2 MILLION OR MORE:

FAR 52.215-10	PRICE REDUCTION FOR DEFECTIVE COST OR PRICING DATA (AUG 2011), if certified cost or pricing data is required
FAR 52.215-11	PRICE REDUCTION FOR DEFECTIVE COST OR PRICING DATA - MODIFICATIONS (JUN 2020), if certified cost or pricing data is required
FAR 52.215-12	SUBCONTRACTOR CERTIFIED COST OR PRICING DATA, (JUN 2020) ALTERNATE I (AUG 2020) if certified cost or pricing data is required
FAR 52.215-13	SUBCONTRACTOR CERTIFIED COST OR PRICING DATA - MODIFICATIONS (JUN 2020) ALTERNATE I (AUG 2020) if certified cost or pricing data is required
FAR 52.230-3	DISCLOSURE AND CONSISTENCY OF COST ACCOUNTING PRACTICES (JUN 2020) unless the Subcontractor is an Educational Institution or certifies that it is eligible for and elects to use modified CAS- coverage.

THE FOLLOWING CLAUSES APPLY IF THE SUBCONTRACT EXCEEDS \$6 MILLION AND A PERFORMANCE PERIOD OF MORE THAN 120 DAYS:

FAR 52.203-13	CONTRACTOR CODE OF BUSINESS ETHICS AND CONDUCT (NOV 2021)
FAR 52.203-14	DISPLAY OF HOTLINE POSTER(S) (NOV 2021), except when the Subcontract is for the acquisition of a commercial item or is performed entirely outside the U.S.
FAR 52.210-1	MARKET RESEARCH (NOV 2021)

THE FOLLOWING CLAUSES APPLY IF THE SUBCONTRACT INDICATES IT IS FOR RESEARCH, DEVELOPMENT, OR DEMONSTRATION (RD&D) WORK OR DESIGN WORK INVOLVING NON-STANDARD TYPES OF CONSTRUCTION:

FAR 52.227-16	ADDITIONAL DATA REQUIREMENTS (JUN 1987), applies to all Subcontracts except those with Universities or Colleges under \$500,000
DEAR 970.5227-8	REFUND OF ROYALTIES (AUG 2002)), if ‘royalties’ are paid under the Subcontract by the Subcontractor at any tier in which the amount of royalties reported during negotiation of the subcontract exceeds \$250
DEAR 952.227-13	PATENT RIGHTS – OWNERSHIP BY THE GOVERNMENT (SEP 1997), if the Subcontractor is not a Domestic Small Business or Non-Profit Organization, as defined in FAR 27.301; applies to all Subcontracts except for those with Universities or Colleges under \$500,000
DEAR 952.227-84	NOTICE OF RIGHT TO REQUEST PATENT WAIVER (FEB 1998)

(END OF GENERAL PROVISIONS)